

for the time, they kepte there three dayes & three nightes, & the time onelye may make a ryote greate. yf a man haue had a possession for three yeares, he maye keepe it wth force, but he Can not enter vpon his possession, *nec manu forti nec multitudine gentium.*' 22 Henry VI., 14 Henry VII. a disseisee may not enter on the disseisor by force, notwithstanding he had 60 years possession. *Nihil vi faciendum*, for the law abhors force; *nihil magis contrarium legi quam vis.* 'But he Coulede neyther acquit nor Condemne them by Judgemente, for a Judge shoulde not, neyther Can he, iudge accordinge to his owne pryuate knowledge, *mes secundum allegata et probata.* And the dryuinge of the Cattelle ys lawfull, for the keeper shall haue but the surplusage onelye, & it dothe not appeare that there was anye; & for this laste, he referred to the Common lawe to receyue a tryall there.

'Cheife Justice Popham agreede that the firste was no riote, neyther the seconde, that he Coulede Judge of: for a man may resiste wth force beinge in possession, but not enter wth force.' The keeper who has no grant of herbage and pannage shall have only the surplusage, and if he take agistment [*gisement*] or destroy the wood, it is a forfeiture.

Popham,
C. J.

Without inquiry, a Justice of the Peace cannot grant restitution, if he did not see the force; and the Sheriff ought to restore to possession.

Zouche and London agreed with the two Chief Justices.

Lord Zouche,
Bishop of
London

Exeter censured the second as a riot, and fined [them] £40 *pro exemplo.*

Lord Exeter

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'Northampton. the kinge by his prerogatiue maye take vp any howse in his progres. By the Ciuill lawe the wyues are fauoured in Cases of treason, *propter imbecillitatem sexus.*

Lord North-
ampton

'Lo. Tresorer acquites them all, & referres them to the lawe; for in iudgemente *quod dubites refeceris.*'

Lord
Treasurer

The Archbishop acquits them all.

Archbishop

'Lo. Chauncellor acquites the Lo. Admirall, & that he hathe Carryed himselfe honorable, & greate temper, & good respectes. But for the 2^d ryote, he woulde sentence it yf

Lord Chan-
cellor